TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 31, 2022
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Stephen Wood, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins.
Staff: Michael Reed, Mac DeFord, Chris Swalhah, Aaron Bennett, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Hopkins moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Hopkins moved for deferral of approval of the minutes. Mr. Butner seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

All correspondence received was linked to the agenda and distributed to the Board.

E. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case S-01-22, 1000 Warrior Way, TMS#540-00-00-097. Request for a special exception in accordance with §156.326(C)(3)(g) to allow an addition to be added onto the Wando High School Band Room.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Sebastian Davis, ADC Engineering, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Hopkins moved for approval based on the findings that it is for the public good and there would not be a detriment to adjacent properties. Mr. Duke seconded the motion. All in favor.*

2. **Case V-01-22, 90 Jane Jacobs Street, TMS# 535-06-00-872. Request relief from the I'ON planned development ordinance to allow a 2-foot encroachment into an undisturbed buffer.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. John Altergott, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance based on the findings that the encroachment was an honest error and would not be a detriment to the surrounding properties. Mr. Butner seconded the motion. All in favor.*

3. **Case V-02-22, 33 Duany Road, TMS# 535-06-00-831. Request relief from the I'ON planned development ordinance to allow a reclassification of building type to a rear-yard building with a lot coverage of 47% and side setbacks of 5-feet.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jeremy Onsbott reviewed the request with the Board.

- Mr. Vince Graham, representative for I'On Company, stated that he supports the request. He questioned whether the request required a variance based on the previous determination on designation of lots in 1999.

There being no further comments, Mr. Wolff closed public comment.

- Mr. Wolff administered the oath to Mr. Robertson.

- Mr. Wolff administered the oath to Ms. Lana Domvonavich, 9 Duany.

- *Mr. Barrow moved for denial based on the findings that not all of the required conditions have been met as denial would not prohibit or unreasonably restrict the utilization of the property. Mr. Hopkins seconded the motion. Motion passed on a 4 to 3 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner, Ms. Stevens, and Mr. Duke opposed.*

4. **Case V-03-22, 1221 Fairmont Avenue, TMS# 532-02-00-031. Request for relief from the strict application of §156.119 (G)(2) to allow utilization of a Telecommunications Carrier on Wheels (COW) for a period not to exceed 120 days. This is a relocation of the 100-foot-tall COW ballast pole located at 520 King Street which will be replaced with two 60-foot-tall Cell on Light Truck (COLTS). The ordinance limits the use of COWs for a period not to exceed 120 days following a natural disaster or local emergency declaration.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jonathan Yates reviewed the request with the Board.

Mr. Merrill Parks, T-Mobile, stated that they have faced several challenges with this project including back order of materials to complete the pole. He stated that it is anticipated that the material would not be available until approximately April 2022. He stated that another issue has been surveying the building. He stated that they are moving forward with the lease that should be executed by mid-February.

- Mr. Don Slovic, with AT&T, agreed that they would like to complete the project as soon as possible to provide better service for the neighborhood.

There being no further comments, Mr. Wolff closed public comment.

▶ *Ms. Stevens moved for approval contingent on having a signed lease by February 28, 2022, and to allow the COW to be in place for up to 180 days based on the findings that §156.119(G)(2) allows the use of a COW, there are extraordinary conditions in that a large population of residents would lose service and it would also affect emergency access. Mr. Barrow seconded the motion. All in favor.*

5. **Case V-04-22, 1421 Appling Drive, TMS# 560-06-00-094. Request for relief from the strict application of §156.107(A)(2) to allow an 11-foot encroachment into the front-yard setback by the exterior stairs. The ordinance limits encroachments into the front-yard setback by exterior stairs to 4-feet.**

▶ Mr. Swalhah reviewed staff comments with the Board.

Mr. Bob Almirall reviewed the request with the Board.

▶ There being no comments, Mr. Wolff closed public comment.

▶ *Mr. Wood moved for denial based on the findings that the applicant received approval for plans that would be in compliance but chose to build otherwise and that denial would not prohibit or unreasonably restrict the utilization of the property. Mr. Hopkins seconded the motion. All in favor.*

H. Approval of Final Orders

The Board signed final orders.

I. Re-adoption of Bylaws

▶ *Mr. Wood moved for approval of the bylaws. Mr. Hopkins seconded the motion. All in favor.*

J. Election of Officers

- *The Board elected Mr. Wolff as chair and Mr. Wood as vice-chair by secret ballot.*

There being no further business, the meeting adjourned at 7:31 pm.

Submitted by,
L. Lynes
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